

Court No. - 76

Case :- CRIMINAL MISC ANTICIPATORY BAIL APPLICATION U/S 438
CR.P.C. No. - 4188 of 2024

Applicant :- Sunil Kumar

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nipun Singh, Vivek Chaturvedi

Hon'ble Krishan Pahal, J.

1. List has been revised. Learned counsel for the applicant is present.
2. Learned A.G.A. prays for some time to seek instructions.
3. List on **3.5.2024** as fresh.

Order Date :- 25.4.2024

Shalini

(Justice Krishan Pahal)

A.F.R.

Neutral Citation No. - 2024:AHC:80248

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Counsel for Applicant :- Nipun Singh, Vivek Chaturvedi

Hon'ble Krishan Pahal,J.

1. List has been revised.
2. Heard Sri Nipun Singh, learned counsel for the applicant as well as Sri Anit Kumar Shukla, learned A.G.A. for the State and also perused the record.
3. The present anticipatory bail application has been filed on behalf of the applicant in Complaint Case No. 2807 of 2020, under Sections 420, 467, 468, 471, 120B IPC, Police Station Jahangirabad, District Bulandshahr, with a prayer to enlarge him on anticipatory bail.

PROSECUTION STORY:

4. The informant moved an application before the S.S.P., Bulandshahar, alleging that his father Kadam Singh was having an electricity connection of 5 HP with service connection no. 0625/3251. The informant was in possession of the said tubewell and used to deposit the bill of the electricity consumed for running the said tubewell. The named accused persons Shyamveer and Dabbu @ Tirvesh, in collusion with the officials of the electricity department, got the said electricity connection transferred in the name of Smt. Shashi Kanta w/o Shyamveer and on 15.10.2019 at about 1.30 pm got the electricity line of the said tubewell disconnected. The informant is a practising advocate. He moved a Memorandum before the Executive Engineer, Vidyut Vitaran Khand Khand on 14.10.2019. The co-accused person Shyamveer is stated to be declared in village that he has got the said connection permanently disconnected in collusion with the employees of the Electricity Department. The crop of the informant is stated to have been destroyed as a result of the lack of irrigation. On 15.10.2019, the Executive Engineer, Jahangirabad, is stated to have asked the informant to move an application

before the police. The FIR was instituted at Police Station Jahangirabad on 18.10.2019 at 4.00 pm.

ARGUMENTS ON BEHALF OF THE APPLICANT:

5. Learned counsel has stated the informant herein is a practising advocate in the District Court Bulandshahar and the applicant has apprehension of being mistreated and manhandled at Sessions Court, that is why, he has moved the anticipatory bail application before this Court directly. It is next stated that there is no likelihood of him absconding.

6. Learned counsel for the applicant has stated that the applicant is maliciously being prosecuted in the present case due to ulterior motive and has the apprehension of his arrest. The applicant has nothing to do with the said offence as alleged by the prosecution. Learned counsel has next stated that opposite party no. 2, being the renowned advocate at District and Sessions Court, Bulandshahar, practising since 1981, therefore, the renowned Advocates practising at District and Sessions Court, Bulandshahar, have refused to contest and pursue the case on behalf of the applicant.

7. The enmity of informant with the applicant stands established from the fact that the applicant had passed the order of disconnecting the electricity connection of the opposite party no. 2 on 19.10.2019. It is next stated that the applicant is not named in the FIR. His name has come up later on during investigation, that too, at the behest of opposite party no. 2. The instant criminal proceedings have just been initiated against the applicant to harass him and to threaten him to get his service terminated by instituting other criminal cases against him. It is stated that he is being threatened by the opposite party no. 2 of dire consequences, whenever he appears in the present matter before the trial court.

8. Learned counsel has further stated that Smt. Shashi Kanta, the named accused person, had purchased 0.402 hectares of land in Gata no. 151, 115, 209, 147 from Rajeev Singh and Kapil Kumar S/o Mahendra Kumar of the several village through registered sale deed dated 2.6.2009. The co-accused person Smt. Shashi Kanta, had paid Rs. 15 thousand for the said tubewell, which fell in Gata no. 209, which stands mentioned in the aforesaid sale deed. The said sale deed has been annexed as Annexure-2 to the affidavit. The name of Smt. Shashi Kanta was mutated in Revenue records over the aforesaid Gate nos. 151, 115, 209, 147 without any objection, in which the tubewell finds mention in Khasra of 1425 Fasli year. A copy of the Khasra No. 1425 fasli year has been filed as Annexure-3 to the affidavit.

9. It is further argued that the named accused person Smt. Shashi Kanta had regularly paid bill of the said tubewell. The payment details of the tubewell connection has been filed as Annexure-4 to the affidavit.

10. It has been vehemently argued that the aforesaid tubewell connection was originally in the name of one Kadam Singh, who was engaged in the agricultural work at Khasra no. 209 on contractual basis. Thereafter, the said land situated in Khasra no. 209 was sold alongwith tubewell to the named accused person Smt. Shashi Kanta, by his owner Rajeev Singh and Kapil Singh, as such, Smt. Shashi Kanta moved an application before the Executive Engineer, Electricity Supply Khand, Jahangirabad, Bulandshahar, for transfer of the said tubewell connection in her name on account of her title. A copy of the application moved by the Smt. Shashi Kanta has been filed as Annexure-5 to the affidavit.

11. Pursuant to the said application, the electricity connection was transferred in the name of Smt. Shashi Kanta vide order dated 6.2.2019, which has been filed as Annexure-6 to the affidavit.

12. Learned counsel has further placed much reliance on the provisions of the Electricity supply Code, 2005, which are being reproduced as follows:-

“4.44 Transfer of Connection and Mutation of Names--

(a) A connection shall be transferred in the name of another person upon the death of the consumer or in case of transfer of ownership or occupancy of the premises, upon an application of the consumer.

(b) Application for mutation shall be filed, in the prescribed format, alongwith prescribed fee by the transferee or the legal heir or successor of the deceased consumer with the local office of the Licensee.

(c) The application shall be accompanied by documentary evidence of transfer or legal heir-ship or succession and proof of no arrears on account of electricity charges on that connection.”

13. The said connection has been transferred in the name of Smt. Shashi Kanta after due procedure as prescribed in the Electricity Supply Code 2005. Smt. Shashi Kanta moved an application on 10.10.2019 seeking permanent disconnection of the aforesaid tubewell connection, as such, it was disconnected by the orders of the applicant dated 19.10.2019. The investigating officer had recorded the statement of the informant u/s 161 Cr.P.C. and there is no whisper of a single word against the applicant in the said statement.

14. It is further argued that the Assistant Engineer, Sub station Charora, has submitted a report in respect of the allegations made in the FIR stating therein that the land of the Gata no. 209 alongwith tubewell situated therein, has been transferred in favour of the aforesaid Smt. Shashi Kanta on 1.11.2019. The said report is filed as Annexure-10 to the affidavit.

15. Subsequent to it, the Lekhpal concerned had also submitted a report in respect of the allegations made in the FIR on 7.11.2019 thereby corroborating the statement of the Assistant Engineer, Sub station Charora. The said report of the Lekhpal has been filed as Annexure 11. The revenue inspector, Anoopshahr, has also confirmed the said report the same day i.e. 7.11.2019.

16. The opposite party no. 2 (informant) has filed a Civil Misc. Writ Petition No. 2733 of 2020 before this Court for getting the electricity connection restored. The said writ petition was disposed of vide order dated 13.7.2023 with liberty being granted to the informant to file a fresh representation before the concerned authority and the authorities were directed to decide the same within three weeks vide order dated 13.7.2023. The representation was made by the informant before the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Jahangirabad, Bulandshahar, which was rejected after examining the grievances made by the informant vide order dated 11.12.2023.

17. The investigating officer filed a closure report in the said case, as such, the informant herein filed a protest petition before the C.J.M. concerned, who, vide order dated 16.3.2020 allowed the protest petition by treating it as a Complaint Case No. 2807 of 2020. After recording the statements of the witnesses u/s 200 and 202 Cr.P.C., the C.J.M., in a mechanical and arbitrary manner, summoned the applicant and others to face criminal trial vide order dated 2.1.2021. The applicant had challenged the said summoning order by filing a petition u/s 482 Cr.P.C. No. 7639 of 2022, which is still pending before this Court.

18. Learned counsel has further argued that the applicant has been summoned without taking recourse to Section 197 Cr.P.C., as there is no sanction to prosecute the applicant on record. The instant proceedings are, thus, abuse of the process of law and have been maliciously initiated in order to fulfil the nefarious designs of the informant. It is stated that the applicant being a public servant, has apprehension of his arrest and his unblemished career is at stake.

19. Several other submissions have been made on behalf of the applicant to demonstrate the falsity of the allegations made against him. The circumstances which, as per counsel, led to the false implication of the applicant have also been touched upon at length. In case, the anticipatory bail application of the applicant is allowed, he will not misuse the liberty and shall cooperate with trial. He has even cooperated during investigation, as such, he shall not be arrested during investigation.

20. Relying on its judgement passed in *Arnesh Kumar Vs. State of Bihar*¹, the Supreme Court in *Md. Asfak Alam Vs. State of Jharkhand and another*², has stated that once the charge-sheet was filed and there was no impediment, at least on the part of the accused, the court having regard to the nature of the offences, the allegations and the maximum sentence of the offences they were likely to carry, ought to have granted the bail as a matter of course. However, the court did not do so but mechanically rejected and, virtually, to rub salt in the wound directed the appellant to surrender and seek regular bail before the trial court. Thus, the High Court fell into error in adopting such a casual approach.

21. Learned counsel has further stated that the applicant was transferred from Jahangirabad, Bulandshahar on 3.1.2022 and is presently posted at District Ghaziabad and no notice of summons has been served to him, as such, he had no knowledge of the said summoning order dated 2.1.2021. The petitioner herein was never the title holder of the land or the tubewell connection in question herein, as such, the instant prosecution is an abuse of process of Court.

ARGUMENTS ON BEHALF OF STATE:

22. On the other hand, learned A.G.A. has vehemently opposed the prayer for grant of anticipatory bail on the ground that the applicant is not co-operating in trial and he has agitated the provisions of Section 482 Cr.P.C, as such, is not entitled for anticipatory bail in light of the judgement of this Court passed in *Shivam Vs. State of U.P. and Another*³.

23. In rebuttal, learned counsel for the applicant has stated that the petition u/s 482 Cr.P.C. qua the applicant is still pending. A copy of the order sheet and the status report of the said application u/s 482 Cr.P.C. have been filed as Annexure-21 to the affidavit, as such, the applicant is entitled for anticipatory bail.

1. (2014) 8 SCC 273

2. (2023) 8 SCC 632

3. AIROnline 2021 All 484.

CONCLUSION:

24. Dealing with the issue of exceptional or special circumstances to invoke the provisions of Section 438 Cr.P.C. directly before High Court, this Court in ***Vinod Kumar vs. State of Uttar Pradesh***⁴, has opined as follows:

37. On a conjoint reading of the aforesaid two decisions, it is manifest that all that was intended was to put in place a rule of abstinence and require the individual to establish the existence of special and compelling circumstances constraining him to move the the High Court in the first instance. On an overall analysis of those decisions, it may, therefore, be conclusively held that while there exists no fetter or restriction upon the High Court entertaining an application under Section 438 Cr.P.C. directly it would ultimately depend upon the discretion of the Judge available to be exercised in the facts and circumstances of each case and upon finding special circumstances which warrant this Court to invoke its jurisdiction in the first instance rather than relegating the party to the Court of Sessions.

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QUESTION D - Exceptional or Special Circumstances

39. Regard must be had to the fact that the Constitution Bench in Sibbia had an occasion to deal with the correctness of the restrictions as formulated by the Full Bench of the Punjab and Haryana High Court on the exercise of power under Section 438 Cr.P.C. Dealing with that aspect the Constitution Bench clearly held that the exercise of discretion as statutorily conferred cannot be confined in a straitjacket. This simply since it would be impossible to either prophesize or foresee the myriad situations in which the jurisdiction of the Court may be invoked. It was for the aforesaid reasons that the Constitution Bench held that this aspect must be left to the judgment and wisdom of the Court to evaluate and consider whether special circumstances exist or are evidenced by the facts of a particular case. The Court deems it apposite to extract the following paragraphs from the decision rendered by the Constitution Bench:-

"13. This is not to say that anticipatory bail, if granted, must be granted without the imposition of any conditions. That will be plainly contrary to the very terms of Section 438. Though sub-section (1) of that section says that the Court "may, if it thinks fit" issue the necessary direction for bail, sub-section (2) confers on the Court the power to include such conditions in the direction as it may think fit in the light of the facts of the particular case, including the conditions mentioned in clauses (i) to (iv) of that sub-section. The controversy therefore is not whether the Court has the power to impose conditions while granting anticipatory bail. It clearly and expressly has that power. The true question is whether by a process of construction, the amplitude of judicial

4. (2020) 2 All Cri R 1562

discretion which is given to the High Court and the Court of Session, to impose such conditions as they may think fit while granting anticipatory bail, should be cut down by reading into the statute condition which are not to be found therein, like those evolved by the High Court or canvassed by the learned Additional Solicitor General. Our answer, clearly and emphatically, is in the negative. The High Court and the Court of Session to whom the application for anticipatory bail is made ought to be left free in the exercise of their judicial discretion to grant bail if they consider it fit so to do on the particular facts and circumstances of the case and on such conditions as the case may warrant. Similarly, they must be left free to refuse bail if the circumstances of the case so warrant, on considerations similar to those mentioned in Section 437 or which are generally considered to be relevant under Section 439 of the Code.

14. Generalisations on matters which rest on discretion and the attempt to discover formulae of universal application when facts are bound to differ from case to case frustrate the very purpose of conferring discretion. No two cases are alike on facts and therefore, courts have to be allowed a little free play in the joints if the conferment of discretionary power is to be meaningful. There is no risk involved in entrusting a wide discretion to the Court of Session and the High Court in granting anticipatory bail because, firstly, these are higher courts manned by experienced persons, secondly, their orders are not final but are open to appellate or revisional scrutiny and above all because, discretion has always to be exercised by courts judicially and not according to whim, caprice or fancy. On the other hand, there is a risk in foreclosing categories of cases in which anticipatory bail may be allowed because life throws up unforeseen possibilities and offers new challenges. Judicial discretion has to be free enough to be able to take these possibilities in its stride and to meet these challenges. While dealing with the necessity for preserving judicial discretion unhampered by rules of general application, Earl Loreburn, L. C. said in Hyman v. Rose : "I desire in the first instance to point out that the discretion given by the section is very wide..... Now it seems to me that when the Act is so express to provide a wide discretion,... it is not advisable to lay down any rigid rules for guiding that discretion. I do not doubt that the rules enunciated by the Master of the Rolls in the present case are useful maxims in general, and that in general they reflect the point of view from which judges would regard an application for relief. But I think it ought to be distinctly understood that there may be cases in which any or all of them may be disregarded. If it were otherwise, the free discretion given by the statute would be fettered by limitations which have nowhere been enacted. It is one thing to decide what is the true meaning of the language contained in an Act of Parliament. It is quite a different thing to place conditions upon a free discretion entrusted by statute to the court where the conditions are not

based upon statutory enactment at all. It is not safe, I think, to say that the court must and will always insist upon certain things when the Act does not require them, and the facts of some unforeseen case may make the court wish it had kept a free hand."

15. Judges have to decide cases as they come before them, mindful of the need to keep passions and prejudices out of their decisions. And it will be strange if, by employing judicial artifices and techniques, we cut down the discretion so wisely conferred upon the courts, by devising a formula which will confine the power to grant anticipatory bail within a strait-jacket. While laying down cast-iron rules in a matter like granting anticipatory bail, as the High Court has done, it is apt to be overlooked that even judges can have but an imperfect awareness of the needs of new situations. Life is never static and every situation has to be assessed in the context of emerging concerns as and when it arises. Therefore, even if we were to frame a 'Code for the grant of anticipatory bail', which really is the business of the legislature, it can at best furnish broad guide-lines and cannot compel blind adherence. In which case to grant bail and in which to refuse it is, in the very nature of things, a matter of discretion. But apart from the fact that the question is inherently of a kind which calls for the use of discretion from case to case, the legislature has, in terms express, relegated the decision of that question to the discretion of the court, by providing that it may grant bail "if it thinks fit". The concern of the courts generally is to preserve their discretion without meaning to abuse it. It will be strange if we exhibit concern to stultify the discretion conferred upon the courts by law.

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26. We find a great deal of substance in Mr. Tarkunde's submission that since denial of bail amounts to deprivation of personal liberty, the Court should lean against the imposition of unnecessary restrictions on the scope of Section 438, especially when no such restrictions have been imposed by the legislature in the terms of that section. Section 438 is a procedural provision which is concerned with the personal liberty of the individual, who is entitled to the benefit of the presumption of innocence since he is not, on the date of his application for anticipatory bail, convicted of the offence in respect of which he seeks bail. An overgenerous infusion of constraints and conditions which are not to be found in Section 438 can make its provisions constitutionally vulnerable since the right to personal freedom cannot be made to depend on compliance with unreasonable restrictions. The beneficent provision contained in Section 438 must be saved, not jettisoned. No doubt can linger after the decision in Maneka Gandhi that in order to meet the challenge of Article 21 of the Constitution, the procedure established by law for depriving a person of his liberty must be fair, just and

reasonable. Section 438, in the form in which it is conceived by the legislature, is open to no exception on the ground that it prescribes a procedure which is unjust or unfair. We ought, at all costs, to avoid throwing it open to a Constitutional challenge by reading words in it which are not be found therein"

40. On an overall consideration of the above the Court is of the considered view that Harendra Singh when interpreted and understood in the manner indicated above, rightly balances the issues that arise. While it was urged that the aforesaid decision would be per incuriam the views expressed by our Full Bench in Onkar Nath Agarwal and the decision of the Constitution Bench in Sibbia, this Court finds no merit in that submission since as noted above, even Onkar Nath Agarwal had envisaged situations where the High Court may relegate parties to the Court of Sessions and refuse to invoke its jurisdiction. Insofar as Sibbia is concerned, it becomes relevant to bear in mind that the Constitution Bench was not dealing with the issue that arises for our consideration directly. The observations with regard to the exercise of discretion as appearing therein were entered in the context of the principles formulated by the Full Bench of the Punjab and Haryana High Court relating to the exercise of power under Section 438 itself. The issue of a self imposed restraint exercised by the High Court in light of the contemporaneous jurisdiction conferred on the Court of Session was not a question directly in issue. The argument of per incuriam is thus liable to be and is consequently rejected.

41. The legal position which consequently emerges is that notwithstanding the concurrent jurisdiction being conferred on the High Court and the Court of Session for grant of anticipatory bail under Section 438 Cr.P.C., strong, cogent, compelling reasons and special circumstances must necessarily be found to exist in justification of the High Court being approached first and without the avenue as available before the Court of Sessions being exhausted. Whether those factors are established or found to exist in the facts of a particular case must necessarily be left for the Court to consider in each case.

42. What would constitute "special circumstances" in light of the nature of the power conferred, must also be left to be gathered by the Judge on a due evaluation of the facts and circumstances of a particular case. It would perhaps be imprudent to exhaustively chronicle what would be special circumstances. As noticed above, it would be impossible to either identify or compendiously propound what would constitute special circumstances. Sibbia spoke of the "imperfect awareness of the needs of new situations". It is this constraint which necessitates the Court leaving it to the wisdom of the Judge and the discretion vested in him by statute. Without committing the folly of attempting to exhaustively enunciate what would constitute special circumstances or being understood to have done so, the High Court would be justified in entertaining a petition directly in the following, amongst other, circumstances:-

(A) Where bail, regular or anticipatory, of a coaccused has already been rejected by the Court of Sessions;

(B) Where an accused not residing within the jurisdiction of the concerned Sessions Court faces a threat of arrest;

(C) Where circumstances warrant immediate protection and where relegation to the Sessions Court would not subserve justice;

(D) Where time or situational constraints warrant immediate intervention. These and other relevant factors would clearly constitute special circumstances entitling a party to directly approach the High Court for grant of anticipatory bail.

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55. In light of what has been held above, the Court records its conclusions on the questions formulated as under:-

A. Section 438 Cr.P.C. on its plain terms does not mandate or require a party to first approach the Sessions Court before applying to the High Court for grant of anticipatory bail. The provision as it stands does not require an individual first being relegated to the Court of Sessions before being granted the right of audience before this Court.

B. Notwithstanding concurrent jurisdiction being conferred on the High Court and the Court of Session for grant of anticipatory bail under Section 438 Cr.P.C., strong, cogent, compelling and special circumstances must necessarily be found to exist in justification of the High Court being approached first without the avenue as available before the Court of Sessions being exhausted. Whether those factors are established or found to exist in the facts of a particular case must necessarily be left for the Court to consider in each individual matter.

C. The words "exceptional" or "extraordinary" are understood to mean atypical, rare, out of the ordinary, unusual or uncommon. If the jurisdiction of the Court as conferred by Section 438 Cr.P.C. be circumscribed or be recognised to be moved only in exceptional situations it would again amount to fettering and constricting the discretion otherwise conferred by Section 438 Cr.P.C. Such a construction would be in clear conflict of the statutory mandate. The ratio of Harendra Singh must be recognised to be the requirement of establishing the existence of special, weighty and compelling reasons and circumstances justifying the invocation of the jurisdiction of this Court even though a wholesome avenue of redress was available before the Court of Sessions

D. What would constitute "special circumstances" in light of the nature of the power conferred, must be left to be

gathered by the Judge on a due evaluation of the facts and circumstances of a particular case. It would be imprudent to exhaustively chronicle what would be special circumstances. It is impossible to either identify or compendiously postulate what would constitute special circumstances. Sibbia spoke of the "imperfect awareness of the needs of new situations". It is this constraint which necessitates the Court leaving it to the wisdom of the Judge and the discretion vested in him by statute.

E. While the Explanation may have created an avenue for an aggrieved person to challenge an order passed under Section 438(1), it cannot be construed or viewed as barring the jurisdiction of the High Court from entertaining an application for grant of anticipatory bail notwithstanding that prayer having been refused by the Court of Sessions.

F. Till such time as the question with respect to the period for which an order under Section 438 Cr.P.C. should operate is answered by the Larger Bench, the Court granting anticipatory bail would have to specify that it would continue only till the Court summons the accused based on the report that may be submitted under Section 173(2) Cr.P.C. whereafter it would be open for the applicant on appearance to seek regular bail in accordance with the provisions made in Section 439 Cr.P.C.

25. The aforesaid view has been affirmed by the Constitution Bench of this Court in **Ankit Bharti v. State of U.P.**⁵, and the following order was passed:

“20. We would consequently answer the Reference by holding that the decision in Vinod Kumar does not merit any reconsideration or explanation. As rightly held in that decision, there can be no exhaustive or general exposition of circumstances in which an applicant may be held entitled to approach the High Court directly. The Court would clearly err in attempting to draw a uniform code or dictum that may guide the exercise of discretion vested in the Court under Section 438 of the Criminal Procedure Code. The discretion wisely left unfettered by the Legislature must be recognised as being available to be exercised dependent upon the facts and circumstances of each particular case. The contingencies spelled out in Vinod Kumar as illustrative of special circumstances may, where duly established, constitute a ground to petition the High Court directly.

21. The special circumstances the existence of which have been held to be a sine qua non to the entertainment of an application for anticipatory bail directly by the High Court must be left for

the consideration of the Hon'ble Judge before whom the petition is placed and a decision thereon taken bearing in mind the facts and circumstances of that particular cause. However special circumstances must necessarily exist and be established as such before the jurisdiction of the High Court is invoked. The application must rest on a strong foundation in respect of both the apprehension of arrest as well as in justification of the concurrent jurisdiction of the High Court being invoked directly. The factors enumerated in Vinod Kumar including (A) and (B) as constituting special circumstances do not merit any review except to observe that the existence of any particular circumstance must be convincingly established and not rest on vague allegations.

22. In light of the aforesaid, we answer the Reference as follows:-

Question (i) and (iv) clearly do not merit any elucidation for it is for the concerned Judge to assess whether special circumstances do exist in a particular case warranting the jurisdiction of the High Court being invoked directly. We answer Questions (ii) and (iii) in the negative and hold that Vinod Kumar does not merit any reconsideration or further explanation. It would be for the concerned Judge to form an opinion in the facts of each particular case whether special circumstances do exist and stand duly established.”

26. Applying the judgements of this Court passed in *Vinod Kumar (supra)* and *Ankit Bharti (supra)*, an exception may be drawn in the instant case to entertain the anticipatory bail application directly by this Court without taking recourse to the provision u/s 438 Cr.P.C. at the District and Sessions Court.

27. On due consideration to the arguments advanced by the learned counsel for the parties, the case of the applicant being a public servant and coupled by the fact that there is no sanction to prosecute u/s 197 Cr.P.C. and also taking into consideration the fact that the applicant has no criminal antecedents to his credit, being a public servant, and at present being posted at Ghaziabad, and the case laws referred above and in view of the law laid down by the Supreme Court in the case of *"Sushila Aggarwal Vs. State (NCT of Delhi)"*⁶, the applicant is entitled to be granted anticipatory bail in this case.

28. Without expressing any opinion upon ultimate merits of the case either ways which may adversely affect the trial of the case, the anticipatory bail application of the applicant is **allowed**.

6. 2020 SCC online SC 98

29. In the event of arrest of the applicant, **Sunil Kumar** involved in the aforesaid case crime number, shall be released on anticipatory bail till the conclusion of trial on furnishing a personal bond with two sureties each in the like amount to the satisfaction of the Presiding Officer/Court Concerned, with the conditions that:-

- i. that the applicant shall make himself available for interrogation by a police officer as and when required;
- ii. that the applicant shall not, directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the court or to any police officer or tamper with the evidence;
- iii. that the applicant shall not leave India without previous permission of the court;
- iv. that the applicant shall not tamper with the evidence during the trial;
- v. that the applicant shall not pressurize/ intimidate the prosecution witness;
- vi. that the applicant shall appear before the trial court on each date fixed unless personal presence is exempted;

30. In case of breach of any of the above conditions, the court concerned shall have the liberty to cancel the bail granted to the applicant.

31. It is made clear that observations made in granting anticipatory bail to the applicant shall not in any way affect the learned trial Judge in forming his independent opinion based on the testimony of the witnesses.

Order Date :- 3.5.2024

Shalini

(Justice Krishan Pahal)